

Court No. - 3

Case :- WRIT - C No. - 22622 of 2021

Petitioner :- Smt. Rekha Rani And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gaurav Maurya

Counsel for Respondent :- C.S.C.,Sunil Kumar Dubey

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

As prayed, put up this case as fresh on 12 November 2021, by way of last indulgence.

Order Date :- 22.10.2021

Prakhar

Court No. - 21

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Petitioner :- Smt. Rekha Rani And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gaurav Maurya

Counsel for Respondent :- C.S.C.,Sunil Kumar Dubey

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

1. Heard Sri Gaurav Maurya, learned counsel for the petitioners and Sri Sunil Kumar Dubey, learned counsel for the respondent-distribution company.
2. At present, the petitioners are aggrieved by the recovery of Rs.8,96,647/- being pursued against them towards electricity dues.
3. According to the petitioners, they were not served with either provisional assessment or the final assessment before coercive measures were adopted. Such fact has been pleaded in paragraph no.14 of the writ petition.
4. Upon time granted, learned counsel for the respondent-distribution company has produced a copy of the provisional assessment order dated 04.01.2021. However, it could not be shown that the said order had been served on the petitioners. Service of that order prior to initiation of recovery is a sine qua non under the provision of Section 126 of The Electricity Act, 2003 read with the UP Electricity Supply Code, 2005. Once a provisional order is served on a consumer, a right accrues to that consumer to file objection to the same, within time granted by law. If such objections are filed, no recoveries may be pressed before the objections are adjudicated.
5. In absence of service of provisional assessment order shown, the recovery being pursued against the provisional order, is premature.

6. Accordingly, the writ petition is ***disposed of*** with the following directions:

(i) subject to the petitioners filing a copy of this order before respondent no.3 (Executive Engineer, Urban Distribution Division Illrd, Mathura), within a period of two weeks from today i.e. not later than 1 December 2021, the respondent no.3 shall make available to the petitioners all adverse material that is being relied in support of the communications dated 22.06.2021 (Annex. 5 to the writ petition).

(ii) upon being thus confronted with the adverse material, the petitioners shall have a right to file a detailed objection within a further period of two weeks therefrom annexing therewith all material as the petitioner may seek to rely on;

(iii) upon receipt of such objection, the said respondent no.3 shall fix a date for hearing in the matter within a period of two weeks therefrom and pass appropriate and reasoned order, strictly in accordance with law, after hearing the parties within a period of one month therefrom.

7. For a period of three months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioners, subject to their complying with the terms of this order.

8. All recoveries shall abide by the decision to be made by the respondent no. 3.

Order Date :- 17.11.2021
S.Chaurasia